

1.

| CASE #      | CASE NAME                          | HEARING NAME                                               |
|-------------|------------------------------------|------------------------------------------------------------|
| CVRI2404156 | KAKISH VS JWILLIAMS STAFFING, INC. | MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT |

**Tentative Ruling:** Appearances requested to discuss:

1. Revise notice to include the full title and date of filing of the document to which the settlement agreement is attached and to attach opt out and objection forms.
2. Revise notice to state that the court has only determined that there is sufficient evidence to suggest that the proposed settlement might be fair, adequate, and reasonable, and that any final determination of those issues will be made at the final hearing.
3. No declaration from defendant concerning notice recipients' likely age, education, experience, and fluency in English.
4. Need proposed order with required attachments (CMO ¶ G.4).
5. PAGA release should be limited to the state and the named plaintiff. Perhaps add reference to *Arias v. Superior Court* (2009) 46 Cal.4th 969 ("a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government. . . . Accordingly, with respect to the recovery of civil penalties, nonparty employees as well as the government are bound by the judgment in an action brought under the act").
6. Need information as to why cy pres was selected, a declaration from the proposed cy pres and both sides' counsel. (CMO ¶ G.3.c.)

2.

| CASE #      | CASE NAME                                                          | HEARING NAME                         |
|-------------|--------------------------------------------------------------------|--------------------------------------|
| CVRI2501688 | FAIRWAY BUSINESS PARK OWNERS ASSOCIATION VS ARI CHANEY STREET, LLC | MOTION FOR JUDGMENT ON THE PLEADINGS |

**Tentative Ruling:**

Take judicial notice of the first amended complaint, the Curtis Engineering decision, and the docket. Deny the remaining requests. Decline to rule on defendant's evidentiary objections with the reply as they are not material to the ruling on the motion.

Sustain demurrer to the second cause of action because the only allegation specific to the defendant is that it was the soils engineer.

Appearances requested on the demurrer to the third cause of action.